

Mutual Non-Disclosure Agreement

This Mutual Non-Disclosure Agreement (this "**Agreement**") is entered into as of January 15, 2026 (the "**Effective Date**"), by and between **Acme Corporation**, a Delaware corporation with its principal place of business at 100 Market Street, San Francisco, California ("**Acme**"), and **Beta Industries, Inc.**, a Delaware corporation with its principal place of business at 200 Innovation Drive, Cambridge, Massachusetts ("**Beta**"). Acme and Beta are sometimes referred to herein individually as a "**Party**" and collectively as the "**Parties**."

1. Purpose

The Parties wish to explore a potential business relationship (the "**Purpose**"). In connection with the Purpose, each Party (in such capacity, the "**Disclosing Party**") may disclose to the other Party (in such capacity, the "**Receiving Party**") certain Confidential Information (as defined below). This Agreement sets forth the terms governing such disclosures.

2. Definition of Confidential Information

"**Confidential Information**" means any and all non-public information disclosed by or on behalf of the Disclosing Party to the Receiving Party, in any form or medium, whether disclosed orally, in writing, electronically, by inspection, or by any other means, and whether or not marked, designated, or otherwise identified as "confidential." Confidential Information includes, without limitation, business plans, financial information, customer and supplier lists, product designs, source code, technical data, research, know-how, trade secrets, and any analyses, compilations, studies, or other documents prepared by the Receiving Party that contain, reflect, or are derived from such information.

Confidential Information does **not** include information that: (a) is or becomes generally available to the public other than as a result of a breach of this Agreement by the Receiving Party; (b) was known to the Receiving Party prior to disclosure by the Disclosing Party, as evidenced by contemporaneous written records; (c) is rightfully received from a third party without restriction on disclosure; or (d) is independently developed by the Receiving Party without reference to or use of the Confidential Information.

3. Obligations of Receiving Party

The Receiving Party shall: (a) hold the Confidential Information in strict confidence; (b) use **reasonable care** to protect the Confidential Information from unauthorized disclosure or use, which shall in no event be less than the care it uses to protect its own confidential information of similar importance; (c) use the Confidential Information solely for the

Purpose; and (d) not disclose the Confidential Information to any third party except as expressly permitted herein.

4. Permitted Disclosures

The Receiving Party may disclose Confidential Information only to its **employees and professional advisors (including attorneys, accountants, and financial advisors)** who have a need to know such information for the Purpose, provided that each such recipient is bound by written confidentiality obligations no less protective than those set forth herein, and the Receiving Party shall remain responsible for any breach by such recipients.

Notwithstanding the foregoing, the Receiving Party may disclose Confidential Information to the extent required by law, regulation, or valid legal process, provided that the Receiving Party promptly notifies the Disclosing Party (to the extent legally permissible) and cooperates in any effort by the Disclosing Party to obtain a protective order or other appropriate remedy.

5. Term and Survival

This Agreement shall remain in effect for a period of **three (3) years** from the Effective Date (the "**Term**"). The obligations of confidentiality and non-use set forth herein shall survive expiration or termination of this Agreement for an additional **five (5) years** with respect to information constituting trade secrets, and shall otherwise terminate upon expiration of the Term.

6. Return or Destruction

Upon the Disclosing Party's written request, or upon expiration or termination of this Agreement, the Receiving Party shall, at the Disclosing Party's election, promptly return or destroy all Confidential Information in its possession or control, and shall certify such return or destruction in writing. The Receiving Party may retain one (1) archival copy of the Confidential Information solely for record-keeping purposes, subject to the continuing obligations of this Agreement.

7. Remedies; Injunctive Relief

The Parties acknowledge that any breach of this Agreement may cause irreparable harm for which monetary damages may be inadequate, and that the Disclosing Party shall be entitled to seek injunctive and other equitable relief, in addition to any other remedies available at law or in equity, without the necessity of posting a bond.

8. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict-of-laws principles. Each Party irrevocably consents to the exclusive jurisdiction of the state and federal courts located in Wilmington, Delaware for any action arising out of or relating to this Agreement.

9. Miscellaneous

No Transfer of Rights; No License. Nothing in this Agreement transfers any right, title, or interest in or to any intellectual property of the Disclosing Party. No license is granted, express or implied, except as expressly set forth herein.

Entire Agreement; Amendment. This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior negotiations and agreements. It may be amended only by a writing signed by authorized representatives of both Parties.

Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

ACME CORPORATION	BETA INDUSTRIES, INC.
By: _____	By: _____
Name: Sarah Chen	Name: David Park
Title: Chief Operating Officer	Title: VP Business Development